JUDICIAL RESPONSES ON LEGAL PROFESSION IN NEPAL

SUBMITTED BY

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ABSTRACT

The legal profession is central to the administration of justice, acting as a bridge between citizens and courts. This study examines its conceptual foundations and judicial regulation in Nepal through doctrinal analysis of selected Supreme Court decisions. It evaluates key strengths and doctrinal challenges emerging from case law, highlighting judicial reinforcement of ethical accountability, lawyer–client confidentiality, access to counsel, and recognition of professional regulatory bodies. At the same time, it identifies continuing concerns such as misuse of writ jurisdiction, weak disciplinary enforcement, regulatory gaps, and challenges in ensuring professional independence. The study proposes reforms to strengthen regulatory mechanisms, improve professional standards, and enhance the functioning of the legal profession within Nepal's constitutional framework. Overall, it shows that judicial precedents play a significant role in shaping accountability, discipline, and public trust in the legal profession in Nepal.

Key words: Legal Profession; Advocates; Administration of Justice

1. Introduction

The term “Legal” refers to matters relating to law, that is, rules recognized and enforced by the state governing rights, duties, and procedures within a community; in jurisprudence it denotes conformity with valid norms of a legal system rather than moral approval. The word profession is derived from the Latin professio or professionenm which means to make a public declaration. The term evolved to describe the calling or an occupation that required new entrants to take an oath professing their dedication to the ideals associated with the learned calling.[1] A “profession” denotes an occupation requiring specialized intellectual training, regulated standards of competence, and a commitment to public service, typically governed by ethical codes and institutional oversight. When combined, the “legal profession” signifies the organized body of trained and licensed practitioners who apply and interpret law on behalf of others and assist in the administration of justice, linking legal norms with practical dispute resolution and rights enforcement.

Herbert M. Kritzer has listed some characteristics [2] to define a profession that include (but not limited to):

- Possession of esoteric but useful knowledge and skills, based on specialized training or education".
- An orientation toward service in the interest of an identifiable client.
- Autonomy of action, with regard both to the specific action (i.e., the professional is in control of the relationship with the client) and to the definition and enforcement of standards of professional behaviour.
- The existence of one or more organisations to serve the internal and external needs of the profession.

[1] Edward D. Re, The Profession of the Law, 15 J. Civ. Rts. & Econ. Dev. 109 (2000).
[2] Herbert M. Kritzer, The Justice Broker: Lawyers and Ordinary Litigation (Oxford Univ. Press 1990).

2. Legal Professionals

Legal professionals are generally understood as individuals trained, qualified, and authorized to apply law through advice, representation, or other legal services. A commonly accepted formulation describes a legal practitioner as "a professional who is qualified, licensed, and authorized to provide legal advice, represent clients, and perform legal services within a specific jurisdiction."[3] A legal professional is generally defined as an individual who possesses specialized, "esoteric" legal knowledge and skills acquired through formal education and training, and who is dedicated to the administration and maintenance of the legal system.[4] Unlike a standard businessperson, a legal professional is viewed as an "officer of the court," meaning their primary duty is to uphold justice and the rule of law, often placing public service above personal profit.

According to the framework established by scholars like Herbert M. Kritzer and Roscoe Pound, a legal professional is defined by four essential pillars:[5]

- **Specialized Expertise:** The possession of complex legal knowledge that requires intensive academic study and often a license or "call to the bar" to practice.
- **Public Service Orientation:** The profession is a "learned calling" intended to serve the interests of clients and the public good rather than mere commercial gain.
- **Autonomy:** Legal professionals exercise independent judgment, free from outside influence, and are governed by their own standards of conduct.
- **Ethical Accountability:** They are bound by a strict code of professional responsibility, including duties of confidentiality, integrity, and the avoidance of conflicts of interest.

In *Savings Bank v. Ward*, the Court outlines key duties and characteristics of an attorney.[6]

  - Attorneys are officers of the court, assisting in the administration of justice, though not government officers.

[3] Legal Practitioner Definition, LSD.LAW, https://lsd.law/define/legal-practitioner (last visited Aug. 15, 2026).
[4] Kharel, A. The Concept of Legal Profession. ResearchGate. https://www.researchgate.net/publication/323327937_The_Concept_of_Legal_Profession

[5] Herbert M. Kritzer, The Professions Are Dead, Long Live the Professions: Legal Practice in a Postprofessional World, 33 Law & Soc'y Rev. 713 (1999); Roscoe Pound, The Lawyer from Antiquity to Modern Times 5–7 (West Publ'g 1953); Roscoe Pound, The Lawyer as a Social Engineer, 3 J. Pub. L. 292 (1954).

[6] Savings Bank v. Ward, 100 U.S. 195 (1879).

- They may be liable for negligence if they fail to exercise reasonable care and professional diligence.
- They are not responsible for every mistake if they act with skill and reasonable competence.
- By entering the profession, they represent adequate knowledge of law, procedure, and court practice.
- They are not expected to be infallible; liability is judged on reasonableness, not perfection.
- Their primary duty is loyalty to the client, with duties to third parties arising only in exceptional cases.

In Nepal, the legal profession is formally regulated through the Nepal Bar Council Act, 2050, which established the Nepal Bar Council (NBC) as an autonomous body empowered to supervise licensing, professional conduct, and disciplinary proceedings.[7] Advocates are further governed by the Rules of Professional Code of Conduct of Legal Practitioners, 2079 (2023). The Constitution of Nepal recognises the right to legal representation as a fundamental safeguard of personal liberty and fair trial. The Supreme Court's writ jurisdiction under Article 133 has been the principal mechanism through which professional conduct, disciplinary authority, and advocates' rights have been judicially developed. This paper analyses twenty-nine decisions of the Supreme Court of Nepal, organised into seven thematic categories, to identify the doctrinal principles shaping the regulation, privileges, and obligations of the legal profession.

[7]Nepal Bar Council Act, 2050, s 8.

3. Cases Relating to The Legal Profession In Nepal

3.1 Professional Ethics, Misconduct, and Conflict of Interest

Advocate Chandan Raj Regmi v Lay Prasad Baskota et al [8]

The advocate signed pleadings as drafter for both the plaintiff and defendant in the same defamation case before Panchthar District Court, violating Rule 3(1)(x) of the Code of Conduct for Legal Practitioners, 2051 (now replicated in Rule 7 of the Rules of Professional Code of Conduct, 2079.[9])

The Nepal Bar Council Disciplinary Committee suspended his licence for six months. The Supreme Court upheld the suspension, affirming that professional misconduct is established by objective breach of ethical rules regardless of the absence of actual harm to the client. The case establishes the foundational principle that conflict-of-interest violations carry independent regulatory consequences: proof of client prejudice is not a precondition for disciplinary sanction.

Dalit NGO Federation v Government of Nepal[10]

Counsel for the petitioners repeatedly failed to appear for hearings before the Supreme Court despite being called. The Court held that advocates, as officers of the court, owe affirmative duties of attendance, cooperation, and facilitation of proceedings. Drawing on the Code of Conduct for Legal Practitioners, 2051, and the UN Basic Principles on the Role of Lawyers (1990), the Court held that non-appearance constitutes professional misconduct. The decision operationalises the concept of lawyers as institutional collaborators in justice administration, linking professional privilege to institutional responsibility.

Adv Achyut Prasad Kharel v Office of the Prime Minister et al[11]

The petitioner filed a public interest litigation challenging the absence of statutory criminalisation of yak killings. The Court declined to issue mandamus, observing that it is not fitting for a responsible legal practitioner to waste the valuable time of the Court for cheap popularity by making unnecessary arguments on impossible and imaginary matters. The

[8]Advocate Chandan Raj Regmi v Lay Prasad Baskota, Case No 075-MS-0021 (Supreme Court of Nepal).

[9]Nepal Bar Council, Rules of Professional Code of Conduct of Legal Practitioners, 2079 (2023), Rule 7.

[10]Dalit NGO Federation (DNF) v Government of Nepal, Nepal Kanoon Patrika (NKP) 2065, Vol 50, Issue 5, Decision No (DN) 7961.

[11]Adv Achyut Prasad Kharel v Office of the Prime Minister et al, NKP 2075, Vol 3, DN 9982.

decision establishes that advocates bear professional responsibility for grounding PIL petitions in substantive legal controversy and that misuse of writ jurisdiction constitutes an ethical failure.

Rabindra Shrestha v Government of Nepal, Ministry of Health and Population et al[12]

A writ petition challenged employee classification provisions as unconstitutional. The Court dismissed the petition, applying the presumption of constitutionality and the principle of reasonable classification. Critically, the Court observed that repeated invocation of writ jurisdiction for settled or minor matters wastes judicial resources and that legal practitioners must exercise professional judgment before invoking extraordinary constitutional remedies. The decision reinforces the advocate's role as gatekeeper of appropriate litigation.

Rajendra Yadav v Land Revenue Office, Mahottari[13]

The Court affirmed normative principles on professional responsibility in the context of extraordinary jurisdiction. Lawyers are described as carriers of the rule of law, guardians of justice, supporters of good governance, and agents of social change. The Court emphasised that law and ethics are inseparable in practice and that lawyers must actively prevent misuse of writ jurisdiction by exercising diligence in assessing jurisdictional basis before filing.

Ramakanta Neupane v District Court Jumla and Judge Shyam Kishor Prasad[14]

The petitioner, a document drafter, prepared applications for both parties in the same case before Jumla District Court, violating Rule 28 of the Legal Practitioner Regulation, 2025 BS. The District Court revoked his certificate without affording a hearing. The Supreme Court held that revocation without an opportunity to be heard violated the principles of natural justice, issued certiorari quashing the decision, and directed reconsideration. The case establishes that even where misconduct is apparent from documentary evidence, procedural fairness cannot be bypassed in disciplinary proceedings.

[12]Rabindra Shrestha v Government of Nepal, Ministry of Health and Population et al, NKP 2073, Vol 58, Issue 2, DN 9538.

[13]Rajendra Yadav v Land Revenue Office, Mahottari, NKP 2072, Vol 57, Issue 6, DN 9422.

[14]Ramakanta Neupane v District Court Jumla and Judge Shyam Kishor Prasad, NKP 2046, Vol 31, Issue 2, DN 3729.

3.2 Rights and Privileges of Advocates (Lawyer–Client Privilege)

Adv Kanti Ram Dhungana (on behalf of Adv Chiranjivi Dhakal) v Metropolitan Police Premises, Teku et al[15]

During the COVID-19 lockdown, police denied an advocate access to a client in custody. The Supreme Court issued habeas corpus relief and held that lawyer–client consultation is a fundamental, non-derogable safeguard of personal liberty that cannot be suspended by emergency restrictions. The decision affirms that professional access to detained clients is a structural component of due process and imposes an affirmative state obligation to facilitate such access even in health emergencies. This ruling is significant because it treats the right to counsel not as a procedural convenience but as essential to preventing arbitrary detention.

Janachetana Law Firm Pvt Ltd v Revenue Investigation Department & Others[16]

A team of Revenue Investigation Department (RID) officials, accompanied by armed police, raided the petitioner's law firm without prior notice, seizing client documents on the basis of an anonymous CIAA directive issued on the same day. The Court issued mandamus directing both agencies to act within their lawful jurisdictions. The Court held that anonymous complaints alone cannot justify coercive measures without minimum preliminary inquiry, and that law firms' confidential documents require heightened procedural protection to safeguard lawyer–client privilege and fair trial rights. The Court also found mala fide intent from the simultaneous directive and raid and noted that ordinary tax administration mechanisms must precede invocation of revenue leakage powers. The decision aligns Nepalese jurisprudence with international standards recognising legal professional privilege as integral to the right to counsel.

Parasuram Banjade on behalf of Yagyamurti Banjade v Durga Das Shrestha, Bagmati Special Court[17]

The petitioner challenged hasty evening detention proceedings conducted without access to legal counsel. The Division Bench held that personal liberty must be curtailed with utmost care and that the Constitution guarantees the right to consult and be represented by a lawyer. Denial

[15]Adv Kanti Ram Dhungana (on behalf of Adv Chiranjivi Dhakal) v Metropolitan Police Premises, Teku et al, NKP 2077, Vol 4, DN 10479.

[16]Janachetana Law Firm Pvt Ltd v Revenue Investigation Department & Others, NKP 2073, Vol 58, DN 7611.

[17]Parasuram Banjade on behalf of Yagyamurti Banjade v Durga Das Shrestha, Bagmati Special Court, NKP 2027, Vol 12, Issue 1, DN 547.

of access to counsel infringed this fundamental right. The decision expanded the right to legal representation to cover detention outside standard court hours and imposed a duty on enforcement authorities to facilitate lawyer appointment for all detainees.

3.3 Licensing and Career Progression

Ram Prasad Prajapati and Others v Chairperson, Nepal Bar Association[18]

Petitioners challenged a candidacy fee for Nepal Bar Association elections as violating the right to participate in professional elections, invoking writ jurisdiction. The Court quashed the petition, holding that the Nepal Bar Association Constitution, 2048, and Bylaw, 2049, are instruments created by the Association itself — not by legislative enactment or delegated authority — and therefore cannot constitute 'law' under Article 133(2) of the Constitution. Writ jurisdiction cannot be invoked to enforce rights under such instruments. The decision preserves institutional autonomy of professional associations from routine judicial intervention.

Advocate Bharat Kumar Lakai & Others v Nepal Government, Ministry of Industry[19]

Advocates challenged mandatory electronic filing requirements for the Office of the Company Registrar, seeking to retain manual submission as an option. The Court rejected the petition, observing that it has not been befitting for young lawyers of the 21st century to file such petitions to halt online processes in the current era. The decision endorsed technological modernisation in legal practice and implied that advocates should facilitate clients' compliance with digital procedures rather than obstruct them.

Advocate Sukdev Gautam v Chairperson, Nepal Bar Association, Appellate Court Bar Unit, Pokhara et al[20]

Reaffirming the principle from Ram Prasad Prajapati, the Court held that bar association constitutions and bylaws are not statutory law and cannot ground writ petitions claiming

[18]Ram Prasad Prajapati and Others v Chairperson, Nepal Bar Association, NKP 2072, Vol 37, Issue 12, DN 9518.

[19]Advocate Bharat Kumar Lakai & Others v Nepal Government, Ministry of Industry, NKP 2072, Vol 57, Issue 12, DN 9509.

[20]Advocate Sukdev Gautam v Chairperson, Nepal Bar Association, Appellate Court Bar Unit, Pokhara, Bishnu Kushal Bhujel and Others, NKP 2060, Vol 45, DN 7236.

infringement of rights under those instruments. This principle is consistent with Som Prasad Pudasaini v Nepal Family Planning Association,[21]

which extended the rule to any voluntary association's internal constitution not enacted through delegated legislative authority.

Advocate Rajan Burlakoti v Nepal Bar Council, Kupandol, Lalitpur[22]

Rule 13(2) of the Nepal Bar Council Internal Management Rules, 2055 required advocates seeking licence updates to apply through their bar unit, effectively compelling bar unit membership. The Court held that while the rule is procedural in aim, it cannot be applied to prevent advocates who are not affiliated with any bar unit from renewing their licences. The NBC was directed to accept direct applications in such cases. The decision protects freedom of association under Article 12(3)(g) of the Interim Constitution, 2063 and prevents procedural requirements from imposing coercive organisational membership as a precondition for professional practice.

Toya Nath Dhungana v Secretariat of Judicial Council and Others[23]

The petitioner challenged the Judge Appointment (Procedure) Criteria, 2069, issued without proper legal authority, as ultra vires. The Court quashed the Criteria and held that constitutional provisions mandate transparent, merit-based written and oral examinations for advocates seeking appointment as District Judges, equivalent to gazetted first-class officer standards. A mandamus was issued directing the Ministry of Law to draft enabling legislation. The decision affirms advocates' constitutional right to compete in judicial appointment examinations through a standardised process and establishes that administrative criteria for judicial appointments cannot exceed constitutional authority.

Pashupati Karki v Government of Nepal, Office of the Prime Minister and Council of Ministers et al[24]

The petitioner challenged s 17(2) of the Nepal Bar Council Act, 2050, which terminated direct licensing of proficiency certificate holders after nine years. The Court upheld the provision,

[21]Som Prasad Pudasaini v Nepal Family Planning Association, NKP 2052, Vol 37, DN 5078.

[22]Advocate Rajan Burlakoti v Nepal Bar Council, Kupandol, Lalitpur, NKP 2071, Vol 56, DN 9254.

[23]Toya Nath Dhungana v Secretariat of Judicial Council and Others, NKP 2071, Vol 56, No 3, DN 9141.

[24]Pashupati Karki v Government of Nepal, Office of the Prime Minister and Council of Ministers et al, NKP 2067, Vol 52, Issue 9, DN 8455.

affirming that the legislature possesses exclusive authority over licensing requirements and that no person can claim the right to practise law without completing legally prescribed procedures. The decision endorsed the NBC's regulatory mandate, recognised international competitiveness under WTO standards as a legitimate basis for raising entry qualifications, and reinforced the Nepal Bar Association's umbrella institutional authority.

Laxmi Prasad Pokharel v Nepal Bar Council et al[25]

The NBC required payment of a building construction donation alongside the licence renewal fee. The Supreme Court declared this ultra vires and null and void, holding that the NBC cannot impose financial conditions beyond those authorised by statute as prerequisites for licence renewal. The decision protects advocates from regulatory exactions that lack statutory basis.

Tulasi Prasad Paudel v Nepal Bar Council et al[26]

An advocate's licence was cancelled following a court conviction for fraud. He argued that no formal complaint had been filed initiating disciplinary action. The Supreme Court upheld the NBC Disciplinary Committee's decision, holding that under s 11(1) of the NBC Act, 1993, a formal complaint is not a prerequisite: credible information from any source suffices to initiate proceedings. The principle ensures that professional misconduct cannot escape regulatory scrutiny merely because no complainant has formally presented a grievance.

3.4 Contempt of Court and Courtroom Decorum

Advocate Ganesh Raj Sharma v Judge Basudev Sharma, Kathmandu District Court[27]

An advocate filed contempt proceedings against a District Judge for remarks made during certification proceedings, alleging humiliation. The Court held that the relationship between judges and lawyers is fundamental to the dispensation of justice and that mutual respect is essential. But, judicial errors not accompanied by intent to humiliate do not constitute contempt. The decision balances professional dignity with the recognition that intent is a necessary element of contemptuous conduct directed at advocates.

[25]Laxmi Prasad Pokharel v Nepal Bar Council et al, Writ No 3424 (2061), decided 2061/11/11.

[26]Tulasi Prasad Paudel v Nepal Bar Council et al, Criminal Appeal No 1773 of 1997, decided 25 April 2002.

[27]Advocate Ganesh Raj Sharma v Judge Basudev Sharma, Kathmandu District Court, NKP 2028, Vol 13, Issue 1, DN 611.

Supreme Court v Advocate Kusum Shrestha, License No 40[28]

Contempt proceedings were initiated against an advocate who publicly alleged that an opponent had improper influence over the bench. The Court imposed a fine of Rs 500/- under s 6 of the Supreme Court Act, 2019, holding that while advocates may raise legitimate grievances about judicial administration, statements that undermine public confidence in the administration of justice constitute contempt. The decision draws the boundary between protected professional criticism and contemptuous conduct and affirms that a competent bar strengthens judicial function while disrespectful conduct erodes it.

3.5 Public Interest Litigation

Adv Sapana Pradhan Malla (on behalf of Forum for Women, Law and Development) v Government of Nepal et al[29]

The petitioner sought directive orders requiring legislation protecting the privacy and identity of women, children, and persons affected by HIV/AIDS in judicial and investigative proceedings. The Supreme Court issued a directive order mandating government action and emphasised that effective implementation of closed-hearing provisions requires professional competence, confidentiality sensitivity, and active advocacy on behalf of vulnerable groups. The decision expands professional responsibility to encompass victim-sensitive practice, recognises lawyers as stakeholders in procedural law reform, and links confidentiality obligations to broader equality and dignity rights enshrined in the Constitution and international human rights instruments.

The misuse of PIL jurisdiction was addressed in the earlier decisions of Adv Achyut Prasad Kharel v Office of the Prime Minister et al and Rajendra Yadav v Land Revenue Office, Mahottari.

Taken together, these decisions establish a consistent judicial position that advocates invoking PIL and writ jurisdiction bear an enhanced professional obligation to verify legal foundation, standing, and genuine public interest before filing, and that repeated invocation of extraordinary remedies for trivial matters constitutes professional misconduct.

[28]Supreme Court v Advocate Kusum Shrestha, License No 40, NKP 2023, Vol 9, Issue 1, DN 327.

[29]Adv Sapana Pradhan Malla (on behalf of Forum for Women, Law and Development) v Government of Nepal et al, NKP 2064, Vol 9, DN 7880.

3.6 Professional Rights and Procedure

Chiranjivi Khatiwada v His Majesty's Government and Sita Mahat[30]

The petitioner challenged a procedural decision regarding legal representation. The Court held that legal practitioners do not possess an automatic right to appear on behalf of a party in all proceedings: under s 65(1) of the Courts Management Act and s 22(1) of the NBC Act, 1993, representation requires court permission and the authority to appear is conditional on judicial grant. The decision clarifies that professional standing before courts is subject to judicial oversight rather than automatic by reason of licensing alone.

Adv Punya Prasad Gautam v Kathmandu District Court et al[31]

A dispute arose concerning the sufficiency of court notices issued using an advocate's licence number as the primary identifier. The Court upheld the notice, holding that identification through professional title and licence number is legally sufficient within the judicial system. Licensing records constitute authoritative identifiers, and reliance on them promotes procedural efficiency while maintaining regulatory accountability through NBC records.

Advocate Subodh Man Napit v Office of Prime Minister and Council of Ministers, Singha Durbar et al[32]

The petitioner challenged the parliamentary hearing requirement for Supreme Court justices introduced by constitutional amendment, contending it violated judicial independence. The Court dismissed the petition, holding that constitutional amendments may be reviewed only where they infringe the basic structure of the Constitution, and that the parliamentary hearing requirement raised a political question beyond judicial competence. Notably, the Court invited amicus curiae from the Nepal Bar Association, Supreme Court Bar Association, and university law faculties, recognising academic expertise as a legitimate resource in constitutional adjudication and reflecting a practice akin to the German tradition of scholarly input in constitutional review.

[30]Chiranjivi Khatiwada v His Majesty's Government and Sita Mahat, NKP 2061, Vol 46, Issue 12, DN 7476.

[31]Adv Punya Prasad Gautam v Kathmandu District Court et al, NKP 2076, Vol 3, DN 10215.

[32]Advocate Subodh Man Napit v Office of Prime Minister and Council of Ministers, Singha Durbar et al, NKP 2067, Vol 42, Issue 6, DN 8385.

Ram Lakhan Yadav v Kathmandu District Court and Others[33]

An opponent argued that limitation ran from the date an advocate unilaterally obtained a copy of a decision for study purposes without formal appointment by the client. The Court rejected this, holding that a lawyer who obtains case records for study without being formally appointed as counsel has no effect on the party's limitation period or legal rights. The case clarifies the boundary between professional study activities and acts that trigger legal consequences for clients.

Agent Narayan Prasad Koirala v Syangja District Court et al[34]

The petitioner sought recognition of the right of an agent (abhikarta) to appear before a bench and conduct cross-examinations equivalent to a licensed advocate. The Court held that no legal provision confers such rights on agents: cross-examination and inquiry functions under the Evidence Act, 2031, are restricted to licensed legal practitioners. The decision preserves the integrity of professional representation and reinforces the regulatory significance of the licensing framework in demarcating who may exercise adversarial courtroom privileges.

Rishi Dhamala et al v Government of Nepal, Home Ministry et al[35]

In habeas corpus proceedings, the petitioners' advocate raised arguments orally that were not included in the written petition. The Court held that judicial decision-making must be confined to issues explicitly raised in the petition and that oral extensions beyond its scope cannot form the basis of judicial relief. Advocates must accordingly limit their submissions to pleaded issues, reinforcing the procedural integrity of writ jurisdiction and professional discipline in advocacy.

3.7 Protection of Advocates Against State Overreach

Bashudev Dhungana (on behalf of Senior Advocate Mukunda Regmi et al) v Prime Minister, Council of Ministers et al[36]

[33]Ram Lakhan Yadav v Kathmandu District Court and Others, NKP 2072, Vol 57, Issue 5, DN 9396.

[34]Agent Narayan Prasad Koirala v Syangja District Court et al, NKP 2058, Vol 43, Issue 9, DN 7033.

[35]Rishi Dhamala et al v Government of Nepal, Home Ministry et al, NKP 2066, Vol 51, DN 8050.

[36]Bashudev Dhungana (on behalf of Senior Advocate Mukunda Regmi et al) v Prime Minister, Council of Ministers et al, NKP 2046, Vol 31, Issue 12, DN 4025.

The President of the Nepal Bar Association filed habeas corpus on behalf of three legal practitioners arrested on 25 February 1990 and denied basic facilities like food, medicine, bedsheets, and visitor access during preventive detention. The administration alleged detention for anti-Panchayat agitation and incitement of extremist activities. The Supreme Court issued habeas corpus, holding that preventive detention affecting fundamental rights must specify grounds, communicate them to the detainee, and notify the District Court within 24 hours; non-compliance renders detention illegal. The decision affirmed the Bar Association's protective institutional mandate over its members and established that lawyers cannot be detained arbitrarily during the exercise of professional advocacy functions, strengthening the structural independence of the legal profession during periods of political instability.

The Janachetana Law Firm decision, discussed above, extends protection against state overreach to the investigative context.[37]

The coordinated same-day CIAA directive and RID raid, without minimum prior inquiry and premised on an anonymous complaint, was held to evidence mala fide intent. The mandamus requiring both agencies to operate within their respective jurisdictions creates a protective framework preventing investigative authorities from weaponising tax enforcement against advocates engaged in professional criticism of state appointments.

4. Strengths, Problem and Suggested Measures

4.1 Strengths Emerging from the Case Law

- **Judicial protection of access to counsel as a core safeguard**
  The habeas corpus decision during the COVID-19 lockdown (Adv. Kanti Ram Dhungana / Adv. Chiranjivi Dhakal) affirms that lawyer–client consultation is an integral component of due process rather than a mere procedural privilege. The Court treated access to legal counsel as indispensable for safeguarding personal liberty, particularly when emergency-type restrictions expand executive power.
- **Recognition of professional identification and institutional reliability**
  The summons and notice decision (Adv. Punya Prasad Gautam) establishes that an advocate's licence number and professional designation constitute reliable identification for judicial administration. This reflects institutional confidence in the regulatory records maintained by the Nepal Bar Council and facilitates procedural efficiency within courts.
- **Doctrinal control over misuse of public interest litigation and writ jurisdiction**
  The decisions involving Adv. Achyut Prasad Kharel and Rajendra Yadav emphasize that extraordinary constitutional remedies should not be invoked for trivial disputes or matters lacking genuine public importance. By discouraging misuse of PIL and writ jurisdiction, the Court promotes responsible advocacy, judicial efficiency, and access to justice for legitimate claimants.
- **Reaffirmation of advocates' duties as officers of the court**
  In *Dalit NGO Federation v. Government of Nepal* (Decision No. 7961), the Supreme Court operationalized the concept of lawyers as "officers of the court." The ruling emphasized duties such as attendance at hearings, cooperation with judicial processes, and avoidance of conduct that obstructs court proceedings, thereby linking professional ethics with the effective administration of justice.
- **Firm enforcement of conflict-of-interest rules and disciplinary accountability**
  In *Chandan Raj Regmi v. Lay Prasad Baskota*, the Court supported disciplinary measures against an advocate who engaged in conduct creating a conflict of interest. The decision demonstrates that professional misconduct can attract sanctions even without proof of actual harm to the client, underscoring that ethical compliance is an independent regulatory obligation.
- **Integration of professional responsibility with victim-sensitive justice**
  The decision in *Sapana Pradhan Malla* (Decision No. 7880) expanded the understanding of professional responsibility by linking advocacy with protection of privacy, dignity, and access to justice for vulnerable victims. The ruling emphasized confidentiality and competence in closed-court proceedings and acknowledged the collaborative role of lawyers, civil society, and state institutions in justice reform.
- **Protection of lawyer–client confidentiality from intrusive state action**
  The ruling concerning *Janachetana Law Firm* strengthened the doctrine of professional secrecy by requiring strict procedural safeguards before investigative authorities may conduct searches or seizures of law-office documents. The decision reinforces the confidentiality inherent in the lawyer–client relationship and aligns Nepalese jurisprudence

with international standards recognizing legal professional privilege as essential to fair trial rights.

- **Safeguarding advocates from arbitrary detention or interference**
  The *Bashudev Dhungana* case highlights judicial concern for protecting the independence of the legal profession during periods of political instability. By condemning arbitrary detention of lawyers performing professional duties, the Court affirmed that advocates must operate without intimidation or improper interference from state authorities.
- **Recognition of the autonomy of professional regulatory institutions**
  In the decisions involving *Ram Prasad Prajapati* and *Sukdev Gautam*, the Court clarified that the Constitution and bylaws of the Nepal Bar Association function primarily as internal professional instruments rather than statutory law enforceable through writ jurisdiction. This interpretation preserves the autonomy of professional associations while leaving room for judicial intervention where constitutional rights are affected.
- **Protection of freedom of association within the legal profession**
  In *Rajan Burlakoti*, the Court held that regulatory authorities cannot compel advocates to join specific organizational units as a prerequisite for licence renewal. The decision reinforces the constitutional guarantee of freedom of association and prevents professional regulation from imposing coercive organizational membership.
- **Promotion of merit-based entry into the judiciary**
  The ruling in *Toya Nath Dhungana* confirmed that qualified advocates are entitled to compete in examinations for judicial appointment. This strengthens transparency and equality of opportunity within the justice system and supports a merit-based pathway from legal practice to the judiciary.
- **Judicial endorsement of regulatory authority over professional licensing**
  The decision in *Pashupati Karki* reaffirmed the Nepal Bar Council's authority to supervise licensing requirements and ensure compliance with professional standards. Judicial recognition of this regulatory mandate contributes to maintaining competence and accountability within the legal profession.
- **Encouragement of technological modernization in legal practice**
  In *Bharat Kumar Lakai*, the Court supported the implementation of electronic filing systems, recognizing that modern legal practice requires technological competence. The ruling reflects the judiciary's commitment to improving efficiency, transparency, and accessibility in court administration.
- **Clarification of procedural privileges limited to licensed advocates**
  The *Narayan Prasad Koirala* (agent representation) decision drew a clear boundary between licensed advocates and non-lawyer agents by restricting certain courtroom privileges to qualified legal professionals. This distinction preserves the integrity of professional representation and reinforces the regulatory significance of legal licensing.
- **Reinforcement of courtroom discipline through contempt jurisprudence**
  The contempt decisions in *Ganesh Raj Sharma* and *Kusum Shrestha* underscore the importance of maintaining respect for judicial institutions. By assessing the intent and impact of conduct affecting the dignity of the court, the rulings balance freedom of expression with the need to protect the authority and legitimacy of the judiciary.

- **Enhanced procedural access to court records for legal research and advocacy**
  In *Ram Lakhan Yadav*, the Court recognized the right of advocates to obtain copies of court documents for study and professional purposes. This promotes informed legal argumentation, strengthens research capacity among lawyers, and contributes to improved quality of advocacy before courts.

Overall, the body of case law demonstrates that Nepalese jurisprudence increasingly recognizes the legal profession as a structural component of the justice system. Through protection of professional independence, enforcement of ethical standards, recognition of regulatory institutions, and encouragement of procedural modernization, the Supreme Court has reinforced the role of advocates as essential actors in the administration of justice.

4.2 Problems and Doctrinal Tensions Identified

- **Emergency access to counsel remains operationally fragile**

  Even though the Court affirmed non-derogable consultation rights, the case demonstrates that police practice can still restrict lawyer access during crises. The gap is not doctrinal, but administrative: lack of enforceable operational protocols at police stations and detention facilities.

- **Over-reliance on professional identifiers without robust verification protocols**

  While recognition of licence numbers improves efficiency, procedural reliability can be undermined if courts lack systematic verification mechanisms (e.g., real-time checking of validity, suspension status, or impersonation risks). The case endorses sufficiency, but implementation requires secure verification systems.

- **Persistent abuse of writ/PIL jurisdiction despite judicial warnings**

  The Court repeatedly cautions against unnecessary litigation, which implies the problem is recurrent. This points to weak professional screening culture, incentives to file, and limited consequences for frivolous constitutional petitions.

- **Professional misconduct linked to procedural disruption and non-cooperation**

  DNF v. Government shows courts still face non-appearance and conduct that delays hearings. This reveals enforcement limitations: ethical norms exist, but day-to-day compliance depends on consistent disciplinary and courtroom management responses.

- **Conflict-of-interest violations indicate compliance weakness in basic ethics**

  The Regmi case demonstrates that some advocates still engage in conduct that is plainly prohibited (drafting/assisting both sides). This suggests either (i) inadequate ethical training and supervision, (ii) weak office systems, or (iii) limited perceived risk of detection.

- **Victim confidentiality remains under-legislated and unevenly implemented**

  Sapana Pradhan Malla highlights structural gaps: closed hearing provisions exist but are not supported by infrastructure, training, and uniform procedures. Court records, case files, copies, and publication practices often expose identities. This problem affects lawyers directly because they handle pleadings, evidence, copies, and communications that can leak sensitive information.

- **Institutional coherence problems between education, licensing, and professional competence**
  Across cases, courts assume Bar Council regulation provides accountability. Yet Nepal's broader institutional challenge, uneven legal education quality and limited continuing training can weaken the practical competence required for the responsibilities courts articulate.
- **Limited clarity regarding the boundaries between lawyer privileges and non-lawyer representation**
  Cases addressing representation by agents highlight ongoing uncertainty about the procedural role of non-lawyer representatives. While the Court has attempted to delineate privileges reserved for licensed advocates, inconsistent practices in lower courts sometimes blur these boundaries, affecting professional regulation and the quality of representation.
- **Doctrinal ambiguity regarding the legal status of professional association rules**

  Judicial findings that bar association constitutions and bylaws are internal instruments rather than statutory law strengthen institutional autonomy but may simultaneously create uncertainty about enforceability. When professional rules lack explicit statutory backing, the scope of judicial review and the mechanisms for enforcing disciplinary norms can become unclear.

- **Contempt jurisprudence reveals tension between professional criticism and judicial authority**
  Decisions involving contempt demonstrate the challenge of balancing freedom of expression for lawyers with the need to protect the dignity of the judiciary. The absence of clearly articulated thresholds for when criticism becomes contemptuous conduct can generate uncertainty for advocates engaging in public commentary on judicial matters.
- **Technological modernization creates uneven professional adaptation**

  The introduction of electronic filing systems reflects judicial modernization, but many practitioners, particularly outside major urban centers—lack sufficient technological resources or training. Without parallel investment in digital infrastructure and training programs, modernization may unintentionally widen disparities within the legal profession.

- **Weak enforcement mechanisms for disciplinary accountability**

Although courts frequently affirm the authority of the Nepal Bar Council to regulate professional conduct, disciplinary processes can be slow and reactive. Limited transparency, procedural delays, and inconsistent sanctions reduce the deterrent effect of professional discipline and may weaken public confidence in regulatory oversight.

Overall, these problems reveal that while doctrinal principles protecting professional independence and ethical standards are relatively well developed in jurisprudence, significant institutional and administrative challenges remain. The tensions identified across the cases reflect a broader need for improved regulatory coordination, stronger professional training, and clearer procedural frameworks to translate judicial principles into consistent practice within Nepal's legal system.

4.3 Suggested Measures

A. Recommendations for Courts

- **Standard operating protocol for lawyer–client access in detention**

  Issue binding administrative directions to all detention facilities requiring scheduled consultation windows, confidentiality protections, and documented reasons for any restriction. Non-compliance should trigger supervisory review and, where necessary, contempt/disciplinary referral.

- **Uniform verification system for advocate identification**

  Require courts to verify licence validity through an integrated digital register (or formal written confirmation mechanism) particularly when notices/summonses rely on licence numbers. This prevents misuse and reinforces confidence in professional identification.

- **Procedural filtration for PIL/writ petitions**

  Adopt a preliminary screening mechanism (registry-level legal sufficiency check or "maintainability memo") for PIL and extraordinary jurisdiction filings. This is not merits-based adjudication, but a structured check for jurisdictional basis, standing, and legal foundation.

- **Closed hearing and confidentiality management protocols**

  Courts should institutionalize closed-hearing practice beyond physical closure: sealed record procedures, anonymized case numbering, restricted copying, controlled publication standards, and protected witness examination formats.

B. Recommendations for Nepal Bar Council / Nepal Bar Association

- **Mandatory continuing professional development (CPD)**

Introduce annual CPD requirements on: conflicts of interest, client confidentiality, courtroom ethics, and PIL/writ standards. Renewal of practice certificate can be linked to minimum CPD hours.

- **Conflict-check and file-management standards**

  Require advocates/law firms to maintain basic conflict-check systems (even a simple register) to prevent drafting/representation for both sides. In disciplinary matters, absence of a conflict-check system may be treated as an aggravating factor.

- **Disciplinary transparency and deterrence**

  Publish anonymized disciplinary summaries (facts, rule breached, sanction) regularly. This increases compliance by clarifying what conduct is punishable and why.

- **Professional responsibility guidance for PIL**

  Issue practice notes that set minimum standards for PIL/writ filing: legal basis, standing explanation, relief feasibility, and disclosure of alternative remedies. Repeated frivolous filing should trigger professional review.

C. Recommendations for Police and Executive Agencies

- **Detention consultation rules**

  Adopt internal police directives ensuring advocates' access, with health and security restrictions limited to what is necessary and proportionate. Maintain consultation logs and allow judicial inspection where disputes arise.

- **Confidential handling of sensitive victims from FIR stage**

  Implement confidentiality protocols beginning at complaint registration: restricted access to identity details, controlled circulation of documents, and penalties for unauthorized disclosure.

D. Recommendations for Legal Education Institutions

- **Curriculum alignment with professional ethics and practice**

  Strengthen clinical legal education and professional responsibility courses. Include practical training on drafting, conflicts, confidentiality, and court etiquette.

- **Bridging training for new entrants**

Provide structured apprenticeship or supervised practice modules before full independent practice, especially for litigation roles.

5. Conclusion

The legal profession in Nepal has evolved into a structured and regulated institution embedded within the constitutional justice system. Judicial interpretation has consistently reinforced the dual role of advocates as client representatives and officers of the court, imposing corresponding ethical and institutional responsibilities. The case law establishes a strong normative framework governing professional conduct, particularly in areas such as conflicts of interest, confidentiality, misuse of jurisdiction, courtroom discipline, and access to justice, thereby strengthening accountability and public trust. The case law analysed in this study confirms that courts in Nepal conceptualize advocates through a dual lens: as autonomous representatives of clients and as ***officers of the court*** with independent duties toward justice administration. Supreme Court further clarifies enforceable ethical boundaries: conflicts of interest, non-cooperation with the bench, disruption of hearings, and misuse of judicial process are treated as professional failures that undermine adjudication and public confidence.

Despite doctrinal clarity, practical implementation remains uneven. Challenges such as inconsistent access to counsel, misuse of writ jurisdiction, ethical violations and weak enforcement of confidentiality norms reflect a gap between legal standards and institutional practice.Strengthening procedural safeguards, improving regulatory enforcement, and enhancing professional training are essential to ensure that legal principles are effectively translated into practice. Such reforms are necessary to reinforce access to justice, uphold the rule of law, and enhance the credibility of Nepal's justice system.

Overall, the study concludes that Nepalese jurisprudence treats the legal profession as a justice-oriented institution whose legitimacy depends on both ***protection and restraint: protection through guaranteed professional access and recognition***, and ***restraint through ethical discipline, procedural fidelity, and responsible invocation of judicial power.*** The durability of public trust in the legal system depends on how effectively courts, regulators, and practitioners internalize and implement these standards in daily legal practice.

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